

March 19, 2010



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 11565
(SIXTH REVISION)

EXPIRATION DATE: February 28, 2014

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: C.P.F. Dualam (USA) Inc.
Gatesville, Texas
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes the manufacture, marking, sale and use of a non-DOT Specification cargo tank motor vehicle for the transportation in commerce of certain Class 8 hazardous materials. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.242 and 173.243 in that a non-DOT Specification cargo tank motor vehicle is not authorized, except as specified herein.
5. BASIS: This special permit is based on the application of C.P.F. Dualam (USA) Inc. dated January 12, 2010 submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Hazardous materials description - - proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Corrosive liquids, n.o.s.	8	UN1760	I
Corrosive liquids, flammable, n.o.s.	8	UN2920	I, II
Waste, corrosive liquids, n.o.s.	8	UN1760	I
Waste, corrosive liquids, flammable, n.o.s.	8	UN2920	I, II

*** Note: Other class 8 materials are authorized under this special permit provided they are compatible with the corrosion liner of the cargo tank described below (as determined by the chemical resistance chart supplied by the resin supplier on file with the Office of Hazardous Materials Special Permits and Approvals.)**

7. SAFETY CONTROL MEASURES:a. PACKAGING:

(1) Packaging prescribed is a non-DOT specification fiberglass reinforced plastic (FRP) cargo tank motor vehicle having a nominal capacity of 5500 U.S. gallons, an inside diameter of 60-inches, and which is designed for an internal pressure of 35 psig and an external pressure of 15 psig. The cargo tank motor vehicle must be constructed in accordance with C.P.F. Dualam Inc. drawings CPF-95-101 (Rev.1), CPF-95-102 (Rev.1), and CPF 95-103 (Rev.1), each dated 3/12/96; engineering calculations and test results; quality assurance requirements for production; and other information submitted with the application and on file with the Office of Hazardous Materials Special Permits and Approvals (OHMSPA).

(2) Tanks must be in conformance with § 173.243, as prescribed in the Hazardous Materials Table, § 172.101.

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(3) The FRP cargo tank motor vehicle must be in full compliance with DOT Specification DOT-412 (§§ 178.345 and 178.348) except as follows:

(a) § 178.345-2 Material and material thickness. Does not apply.

(b) § 178.345-3 Structural integrity. References to the ASME Code do not apply. The physical properties of the FRP being employed must be used in calculating design stresses, with a factor of safety of at least ten.

(c) § 178.345-4 Joints. Does not apply.

(d) § 178.345-7 Circumferential reinforcements. Does not apply. However, circumferential reinforcement must be at least equivalent to that specified for steel and aluminum.

(e) § 178.345-14(b) Nameplate. Requirements are changed as follows:

(1) line (1), the DOT Specification number is replaced by the special permit number, DOT-SP 11565.

(2) lines (10), (13) and (14) are not required.

(f) § 178.345-15 Certification. Manufacturer's certification documents must be modified appropriately to reflect compliance with the terms of this special permit.

(g) § 178.348-1 General requirements. Except for paragraphs (ii), (iv), (v), (vi) and (vii), subsection (e) does not apply.

(h) § 178.348-2 Material and thickness of material. Does not apply.

(i) § 178.348-4 Pressure relief. Paragraph (d) (3) does not apply.

b. TESTING - The non-DOT specification cargo tank motor vehicle must comply with all test requirements of §§ 178.345 and 178.348, and must meet all applicable requirements for periodic testing and inspection of Part 180 Subpart E for

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DOT-412 Specification cargo tank motor vehicles except that the internal and external visual inspections, leakage test, pressure retest and lining test (if the tank is lined) must be performed annually. In addition to those items required to be examined during the visual inspections contained in § 180.407(d) and (e), the visual inspections must include looking for cracks, delaminations, gouges, debonding at saddles and deterioration of the liner, if provided. Copies of test results must be maintained by the owner and the manufacturer for as long as the cargo tank remains in service; the manufacturer must perform analyses of such test results and report findings to OHMSPA at the time of any request for renewal of this special permit.

c. OPERATIONAL CONTROLS:

(1) The compatibility of commodities and the FRP cargo tank must be based on ASTM C 581 "Standard Test Method for Chemical Resistance of Thermosetting Resins Used in Glass Fiber Reinforced Structures". Test reports must be maintained by the owner or manufacturer for as long as the cargo tank remains in service.

(2) Any repair to the cargo tank motor vehicle not affecting its structural integrity must be made in accordance with the manufacturer's recommendations. Any repair which does affect structural integrity must be made by the manufacturer. After repairs to the tank, it must be retested hydrostatically at one and one-half times the design pressure. A record of repairs made and testing performed must be maintained by the manufacturer for as long as the cargo tank remains in service.

8. SPECIAL PROVISIONS:

a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this special permit for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this special permit.

b. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

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- c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
 - d. A current copy of this special permit must be maintained at each facility where the package is manufactured under this special permit. It must be made available to a DOT representative upon request.
 - e. MARKING - Each cargo tank must be plainly marked on the right side near the front, in letters two inches high on a contrasting background, "DOT-SP 11565".
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used under the terms of this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8 who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS:

a. Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

b. Any cracks, delaminations, gouges, debonding or liner deterioration found during visual inspections that could substantially reduce the structural integrity of the cargo tank must be reported to the AAHMS.

Issued in Washington, D.C.



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: ew